

Understanding Societies in Kenya

A Practical Guide to Formation, Registration, Governance and Compliance

Prepared for the LexReg Portal

A society is a membership-based association established by persons who come together for a common purpose. In Kenya, societies are principally regulated under the Societies Act (Cap. 108) and the Societies Rules and are administered by the Registrar of Societies.

The statutory definition is broad and generally captures a club, company, partnership or association of ten or more persons, whatever its nature or object, established in Kenya or having its headquarters or chief place of business in Kenya, subject to statutory exclusions.

Societies can be used for religious, professional, alumni, cultural, recreational, charitable and other associational purposes. The correct legal structure should nevertheless be considered against the organisation's intended activities, funding, assets and governance needs.

1. What Is a Society?

A society is fundamentally a membership organisation. Its members agree to pursue stated objects under a constitution and to be governed through officials, meetings, committees and other structures established by that constitution.

Unlike a company, the society's governance is driven primarily by its constitution, the Societies Act and the Societies Rules. The constitution is therefore central to both registration and continuing governance.

2. Common Types of Societies

- religious organisations, including churches, ministries, mosques and temples;
- professional associations;
- alumni associations;
- cultural associations;
- recreational clubs;
- charitable associations; and
- other membership organisations that fall within the statutory framework.

Some activities may trigger additional approvals or regulation. The Registrar may request additional documents depending on the society's objects and may seek recommendations or no-objection documentation from relevant public bodies.

3. Who Are the Main Participants?

A. Members

Members are the persons who constitute the society. The constitution should state who is eligible for membership, admission requirements, subscriptions or entrance fees, rights and obligations, and the procedures

for suspension, expulsion and cessation of membership.

B. Chairperson

The Chairperson ordinarily provides leadership to the society and presides over meetings in accordance with the constitution. The precise powers and duties should be defined by the constitution rather than assumed.

C. Secretary

The Secretary ordinarily has a central administrative and records role, including notices, correspondence, minutes and statutory notifications, subject to the constitution.

D. Treasurer

The Treasurer ordinarily oversees financial records, receipts, payments and financial reporting, subject to the constitution and any controls established by the society.

E. Other Officials and Committees

The constitution may establish vice-chairpersons, assistant secretaries, trustees, auditors, executive committees or other offices and committees. Their titles, powers, terms, appointment and removal procedures should be clearly defined.

F. Trustees and Auditors

Where the constitution provides for trustees or auditors, their appointment, tenure and responsibilities should be recorded and managed as part of the society's governance structure.

4. The Constitution

The constitution is the society's principal governing document. Current Registrar guidance states that it should conform to the Societies Act and Societies Rules.

It should address, among other matters:

- the name and full objects of the society;
- persons eligible for membership;
- entrance and subscription fees, if any;
- suspension and expulsion of members;
- titles, terms and appointment/removal of officers and auditors;
- composition and governance of committees;
- filling of vacancies;
- frequency, quorum and arrangements for general meetings;
- custody and investment of funds and property;
- purposes for which funds may be used and prohibition on distribution among members;
- inspection of books and membership records;
- annual or periodical audit;
- formation of branches, where permitted;
- amendment of the name and constitution;

- dissolution and disposal of property; and
- a grievance procedure.

Because later governance actions must be consistent with the constitution, LexReg should treat the constitution as a rules engine rather than merely as a document stored in the vault.

5. How Is a Society Formed and Registered?

Stage 1 – Define the Purpose and Membership

Identify the proposed objects, intended class of members, initial membership and the governance structure.

Stage 2 – Select the Proposed Name

Current Registrar guidance requires a name search/reservation process. Applicants may submit up to three proposed names.

Stage 3 – Prepare the Constitution

Prepare a constitution compliant with the Societies Act, Societies Rules and the intended governance model.

Stage 4 – Identify the Officials

Identify the principal officials and any additional offices required by the constitution. The registration forms are signed by the three principal officials: Chairperson, Secretary and Treasurer.

Stage 5 – Complete Form A

Form A captures core particulars including the society's name, objects, class of persons seeking membership, number of members, titles and details of proposed officials, movable property and affiliations.

Stage 6 – Complete Form B

Form B captures the registered physical office and postal address of the society.

Stage 7 – Lodge the Application

The prescribed forms and constitution are lodged with the Registrar together with the applicable fee and any additional documents requested for the particular type of society.

Stage 8 – Review, Vetting and Registration

The Registrar reviews the application and may, depending on the society's objects, subject it to additional vetting or seek input from relevant agencies. If approved, a Certificate of Registration is issued.

6. Core Registration Information for LexReg

The onboarding workflow should capture at least:

- proposed society name and alternative names;
- objects/purpose;
- society category;
- date of formation;

- class of persons eligible for membership;
- initial number of members;
- membership fees/subscriptions;
- registered physical and postal address;
- principal officials and their particulars;
- other officials, trustees and auditors;
- committees and governance structure;
- branches, if contemplated;
- movable and immovable property;
- banking and financial arrangements;
- affiliations; and
- any sector-specific approvals or recommendation letters.

7. Core Registration Documents

For a standard society registration, the core documents are:

- approved/name-search documentation;
- Form A – Application for Registration of a Society;
- Form B – Registered Office Address;
- constitution; and
- any additional documents requested by the Registrar based on the society's objects.

LexReg should use OCR/document extraction where practicable, but all extracted information should be presented for review before submission.

8. Additional or Conditional Documents

The Registrar may require further documents depending on the nature and objects of the proposed society. Official guidance gives examples such as recommendation or no-objection letters from relevant ministries or agencies, and theology certificates for religious organisations.

LexReg should therefore use conditional questions rather than require every possible supporting document from every society.

9. What Happens After Registration?

Registration should create a Society Profile in LexReg containing the society's legal identity, certificate, constitution, officials, members, addresses, committees, assets and continuing obligations.

The system should not treat the Certificate of Registration as the end of the process. A registered society has continuing governance, meeting, record-keeping and filing obligations.

10. Membership Register

The society should maintain a current register of members. LexReg should preserve membership history rather than overwrite it.

The membership workflow should also respect the society's own constitutional rules concerning admission, subscriptions, discipline and cessation.

11. Meetings and Governance

The Societies Act requires every registered society to hold a general meeting at least once in every year to which all members are invited. At that meeting, the society must render a full and true account of money received and paid, audited in accordance with its rules, and elect or appoint the officers, trustees, auditors and committees required by its constitution.

LexReg should therefore support:

- meeting notices;
- agendas;
- attendance and quorum;
- proxies where permitted by the constitution;
- minutes;
- resolutions;
- elections and appointments;
- financial reports; and
- storage of signed governance records.

12. Annual Returns

Registered societies are required to furnish annual returns to the Registrar. Under the Societies Rules, the annual return is due on or before 31 March each year, relates to the immediately preceding calendar year, and is made in Form I signed by three officers.

This should be a core automated compliance event in the LexReg calendar, with advance reminders and document-preparation prompts.

13. Accounts, Audit and Financial Governance

A society should maintain proper financial records and comply with the audit requirements in its constitution and the Societies Act framework. Official Registrar guidance also identifies audited accounts as part of continuing compliance.

- books of account;
- income and expenditure records;
- bank statements and reconciliations;
- annual financial statements;
- audit records;
- asset register;

- budgets;
- payment approvals; and
- supporting vouchers and receipts.

The constitution should identify the persons responsible for custody and investment of the society's funds and property and the purposes for which those funds may be used.

14. Change of Officials

Changes in office bearers should not merely be edited in the Society Profile. They are governance events requiring the supporting meeting and statutory records.

Current Registrar guidance identifies documents including the meeting notice, minutes, attendance/member documentation, Form H, updated annual returns and a forwarding letter for changes of officers or titles.

15. Change of Registered Office or Postal Address

A change of address is also a statutory event. Current guidance identifies an application letter, meeting notice, minutes, attendance documentation and Form B as relevant supporting records.

LexReg should preserve the previous address and effective date so that the society retains a complete historical record.

16. Amendment of the Constitution

Constitutional amendments should be governed by the society's own amendment clause and the statutory process. Current Registrar guidance identifies an application letter signed by three officials, meeting notice, minutes, attendance documentation and the amended constitution, with documents submitted within the prescribed period after the resolution.

LexReg should retain each version of the constitution, its approval date, the meeting and resolution authorising it, and the date it became operative.

17. Change of Name

A society wishing to change its name must follow its constitutional process and the Registrar's requirements. The existing certificate and updated constitutional documents may be required, together with the meeting records and application.

The old name should remain searchable in LexReg as a historical name.

18. Branches

Where the constitution permits branches, LexReg should capture each branch as a related organisational unit rather than a completely separate society unless the applicable legal position requires otherwise.

- branch name;
- location and address;
- branch officials;
- date established;

- parent society;
- branch rules, if any; and
- status.

19. Property and Assets

Societies may own or control movable and immovable property. The Registrar may require information concerning property and may call for title documents and financial information.

LexReg should maintain an Asset Register recording the nature of each asset, acquisition date, ownership/title information, value where relevant, location, supporting document and disposal history.

20. Employment and Operational Compliance

A society may employ staff, rent premises, own vehicles, process personal data, enter contracts or carry on regulated activities. Those activities can generate legal obligations separate from the Societies Act.

LexReg should therefore activate additional compliance modules based on operational facts, including employment, data protection, tax, property, licensing, health and safety, contracts and insurance where relevant.

21. Conflicts, Discipline and Grievances

The constitution should contain a grievance procedure and rules governing suspension or expulsion of members. LexReg should support a documented process that records notices, allegations, responses, hearings or meetings, decisions and any appeal rights under the constitution.

This module should be permission-sensitive because disciplinary and grievance records may contain confidential or personal information.

22. Dissolution

Dissolution should be handled in accordance with the constitution and statutory requirements. Current Registrar guidance identifies an application, meeting notice and minutes, attendance documentation and the original certificate among the relevant documents.

Before closure, the society should also address assets, liabilities, contracts, employees, records, bank accounts and the constitutional rules governing disposal of property.

23. Registered Society vs Exempt Society

The Societies Act provides for both registration and exemption from registration. An exempt society is a distinct status and should not be treated as identical to an ordinary registered society.

LexReg should therefore record the society's actual legal status and certificate type and generate compliance obligations accordingly.

24. How LexReg Can Help

Formation & Registration

- guided name and purpose capture;

- constitution questionnaire and drafting support;
- official onboarding;
- Form A and Form B data preparation;
- conditional supporting-document requests;
- application checklist; and
- registration-status tracking.

Governance

- member register;
- official and committee register;
- meeting notices and agendas;
- quorum checks;
- minutes and resolutions;
- election/appointment records;
- constitution version control; and
- branch management.

Compliance

- annual return reminders and Form I workflow;
- annual general meeting reminders;
- audit/account reminders;
- official-change workflow and Form H;
- address-change workflow;
- constitutional amendment workflow;
- name-change workflow; and
- operational compliance modules.

Records

- Certificate of Registration;
- constitution and amendments;
- member records;
- official records;
- minutes and resolutions;
- financial statements and audit records;
- asset records;
- regulatory correspondence; and
- statutory filings.

Legal & Governance Review

- overdue annual returns;
- failure to hold the annual general meeting;
- outdated officials;
- inconsistent constitutional provisions;
- missing minutes or resolutions;
- membership-record gaps;
- missing audit or financial records;
- unrecorded asset changes; and
- operational compliance gaps.

25. Suggested LexReg Workflow

26. The Key Principle

A society is not merely a registration certificate. It is an ongoing membership and governance system.

For LexReg, the goal should therefore be to manage the entire lifecycle: formation, registration, membership, governance, meetings, officials, assets, compliance, amendments and eventual dissolution.

Important Note

This guide provides general information about societies in Kenya. It does not constitute legal, tax or financial advice for a particular association. Registry procedures, fees and administrative requirements may change, and sector-specific activities may require additional approvals. Current requirements should be verified when an application or filing is made.

Key Legal and Regulatory References

- Societies Act (Cap. 108) – Kenya Law: <https://new.kenyalaw.org/akn/ke/act/1968/4/>
- Societies Rules – Kenya Law: <https://new.kenyalaw.org/akn/ke/act/ln/1968/62/>
- Office of the Attorney General – Registering a Society in Kenya:
<https://www.statelaw.go.ke/services-to-the-public/register-a-society-in-kenya/>
- Office of the Attorney General – Registration Procedure:
<https://www.statelaw.go.ke/services-to-the-public/register-a-society-in-kenya/registration-procedure/>
- Office of the Attorney General – Society Forms: <https://www.statelaw.go.ke/forms/>